

		existing PAGA plaintiff who no longer wanted to prosecute the same PAGA claims that the substitute representative was willing to prosecute). OSC re: Striking Answer of Defendant Jeunesse No tentative ruling. The court will make its ruling at the hearing. Moving party to give notice.
103	Hai vs. Cognizant Trizetto Software Group, Inc. 2026-01563501	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Cognizant Trizetto Software Group, Inc.’s motion to compel arbitration is GRANTED. Plaintiff Jamil Hai’s evidentiary objections are all OVERRULED. As an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; that the agreement applies to his individual claims if the agreement is found to exist; or that if the agreement is found to exist, the Court could compel Plaintiff’s individual PAGA claim to arbitration while staying Plaintiff’s non-individual PAGA claim in this action. Instead, Plaintiff contends that (1) Defendant has failed to satisfy its burden of proving the existence of the agreement; and (2) if an agreement was formed, the agreement is unconscionable and should not be enforced. Existence of the Agreement Both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) A trial court must order arbitration if it determines that an agreement to arbitrate the controversy exists. (CCP, § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement’s provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party’s signature; “[f]or this step, it is not necessary to follow normal procedures of document authentication.” (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165, internal quotes omitted; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) The burden then shifts to the opposing party to produce evidence to challenge the authenticity of the agreement. (<i>Gamboa, supra</i>, 72 Cal.App.5th at p. 165.) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (<i>Id.</i> at pp. 166-167.)

The petitioner must satisfy their burden “by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842, internal citations omitted.)

Here, Defendant presented a declaration by its Senior Manager-Human Resources, Kerstin Aukerman, who has been employed by Defendant since January 1, 2016. (ROA #13 [Auckerman Decl.], ¶ 2.) Auckerman attests that she is familiar with the employee onboarding process, including how new Cognizant employees sign arbitration agreements and how those agreements are stored. (*Id.* at ¶ 3.) Auckerman attests the process is as follows:

- ¶ 4. New hire paperwork is distributed electronically to employees. Once a candidate accepts their offer of employment with Cognizant, they are sent an email with a link to Cognizant’s OnBoarding application, which is authenticated on the Microsoft Azure system. That link leads the new hire to a login page for the “Cognizant OnBoarding” application, where the new hire logs in using the unique username and password the new hire created during the application process.
- ¶ 5. Once in the Cognizant OnBoarding application, the new hire clicks on the link for “Pre Joining Formalities,” which leads to a list of individual links for documents to be reviewed and signed. To review each document, the new hire clicks the “Start Now” button next to the document name, which opens a dialogue box with the relevant document. The new hire can then read each document in its entirety.
- ¶ 6. To sign the documents included in new hire paperwork, including the arbitration agreement, the new hire has to click a box next to an Acknowledgment statement at the end of the document along with the correct “Authentication Key,” which is populated in the system. The Authentication Key is an alphanumeric code sent to each new hire via email. When the new hire checks the acknowledgment box, the new hire’s name and Authentication Key is automatically entered on the document using information from their candidate profile. The new hire then clicks “Submit” to sign. There is then a pop up message that says, “form signed successfully.” Any candidate could then individually print any signed document.
- ¶ 7. All new hire paperwork, including signed arbitration agreements, is then stored in Cognizant’s HR e storage platform in the regular course of Cognizant’s business.

Auckerman also attests as follows as to the agreement she contends was signed by Plaintiff:

- ¶ 8. Attached hereto as Exhibit A is a true and correct copy of the Arbitration Agreement electronically signed by Jamil Hai, as maintained in Cognizant's e-storage platform in the regular course of Cognizant's business. I obtained a copy of this Arbitration Agreement by searching for Mr. Hai's employee profile in Cognizant's HR e-storage website using his associate ID. I then downloaded a PDF of the electronically signed agreement. I did not alter this file in any way.
- ¶ 9. The Arbitration Agreement was electronically signed on May 25, 2022 by Jamil Hai.
- ¶ 10. At the time Mr. Hai signed the Arbitration Agreement, the onboarding process I described above was in place.

In short, although it was not necessary for Defendant, in its initial moving papers, to follow normal procedures of document authentication, Defendant nevertheless offered evidence on authentication.

In opposition, Plaintiff does not attest that he did not electronically sign the agreement. In fact, Plaintiff attests that he received the email with the link to complete the onboarding paperwork, and that he "completed the onboarding paperwork by [him]self, at home, on [his] personal Mac computer." (ROA #25 [Hai Decl.], ¶¶ 2-7.)

Plaintiff also attests that he "had technical problems throughout the onboarding process," and the only examples he gives are that "the portal would not populate [his] apartment number correctly in the address field," and that he "had trouble opening and reading certain onboarding materials on [his] Mac." (*Id.* at ¶ 8.) Plaintiff does not identify the arbitration agreement as one such material.

Plaintiff also admits that on May 24, 2022 at 9:50 p.m. Pacific time, he "emailed Cognizant's onboarding IT support address," and although he does "not specifically remember doing new-hire paperwork that late at night, but [his] emails show that [he] was working on the onboarding paperwork at 9:50 p.m. that night." (*Id.* at ¶ 9.) Plaintiff also admits that the arbitration agreement submitted by Defendant "bears a stamp stating that the [final] page was 'signed by Jamil Hai on May 25 2022 05:00 (GMT),' and that "May 25, 2022 at 05:00 GMT corresponds to 10:00 p.m. Pacific time on the night of Tuesday, May 24, 2022 ." (*Id.*)

Based on all the evidence presented by both sides, and after weighing the credibility of the declarants, the Court finds that Plaintiff electronically signed the subject agreement. (See Civ. Code, § 1633.9, subds. (a) ["An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner,

including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.”].) The Court finds that the only way Plaintiff’s electronic signature could have appeared on the agreement was by Plaintiff using the unique login and password he himself created to log into the onboarding portal.

That Plaintiff contends that he does “not remember ever seeing the ‘Mutual Arbitration Agreement’ at any time before [his] attorney sent it to [him] in connection with this Motion” does not mean Plaintiff did not see it or sign it. (*Id.* at ¶ 14.) Moreover, as Plaintiff admits, “that week was hectic for [him].” (*Id.* at ¶ 9.)

Plaintiff also presents a later email exchange between him and “NAOnboarding@cognizant.com” on 6/2/2022 in which Plaintiff stated he was “having a bit of a hard time opening the attachments.” (*Id.* at Exh. D.) However, there is no explanation as to which “attachments” he is referring to in this email. (See *id.* at ¶ 11.) The Court does not find this evidence sufficient to call into question that Plaintiff did not receive or sign the subject agreement.

Therefore, the Court finds that the subject arbitration agreement exists between the parties.

Enforceability of the Agreement

“Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement.” (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 241.) “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” (*Id.*, citing *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69, 70, fn. 1.)

Although the parties did not address the delegation clause in their papers on this motion, the Court finds that the parties’ arbitration agreement clearly and unmistakably delegates enforceability of the arbitration agreement to the arbitrator in Section D, which reads as follows: “A court of competent jurisdiction, not an arbitrator, must resolve issues concerning the enforceability or validity of the Collective Proceeding Waivers set forth in Section C above. All other disputes regarding the scope, validity, applicability, enforceability or breach of this Agreement, or the arbitrability of any Claim, must be resolved in arbitration under this Agreement.”

In Plaintiff’s opposition, Plaintiff did not present any arguments that the delegation clause itself is unconscionable. Indeed, challenges to the enforceability of a delegation clause must be “specific to the delegation provision,” and not just at “the arbitration agreement as a whole.” (*Rent-A-Center, supra*, 561 U.S. at p. 73, emphasis omitted.) While a party may cite provisions outside the delegation clause in making an

		unconscionability challenge to the delegation clause, the party “must explain how those provisions make <i>the fact of an arbitrator deciding [enforceability]</i> unconscionable.” (<i>Holley-Gallegly v. TA Operating, LLC</i> (2023) 74 F.4th 997, 1002, emphasis original, citing <i>Rent-A-Center, supra</i>, 561 U.S. at p. 74; see also <i>Tiri, supra</i>, 226 Cal.App.4th at p. 243, emphasis original [“any claim of unconscionability must be <i>specific to the delegation clause</i>”].) Therefore, the Court finds that the parties have delegated the question of enforceability of the agreement to the arbitrator. This ends the Court’s inquiry under Code of Civil Procedure (CCP) section 1281.2, and the Court need not consider the remainder of Plaintiff’s arguments as to whether the agreement is unconscionable as a whole such that the agreement should not be enforced. Class Claims Plaintiff’s only argument that the class claims cannot be dismissed is that Defendant “has not proven and cannot conscionably enforce” the agreement, which contains a class action waiver. (Opp. at p. 13.) However, as explained above, the Court has ruled that the agreement exists and that issues of the agreement’s general enforceability are delegated to the arbitrator. Therefore, Plaintiff is ORDERED to arbitrate his individual claims against Defendant, including Plaintiff’s individual PAGA claim against Defendant. Plaintiff’s class claims against Defendant are hereby DISMISSED. This action is STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. An ADR review hearing is scheduled for July 8, 2027 at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice.
104	David Goldman v. LBG Real Estate Companies, LLC 2025-01498037	Motion to Seal Third Parties Leslie Lundin and Douglas Beiswenger’s Motion to Seal Documents Filed in Support of David Goldman’s Supplemental Moving Papers In Support Of His Motion For Receiver For LBG Real Estate Companies, LLC As Authorized By The Order Of This Court Dated January 22, 2026 is GRANTED. Third Parties seek to seal unredacted versions of the following: 1. Plaintiff David Goldman’s Supplemental Moving Papers Support of His Motion for Receiver for LBG Real Estate Companies, LLC As Authorized by the Order of This Court Dated January 22, 2026 (the “Supplemental Moving Papers”), (Unredacted Version Filed Conditionally Under Seal);